



Terms



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For Consumers



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For Partners



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For Everyone



“Parties”.

If you are an individual consumer, please reference the [Terms of Service \(EU Consumer\)](#) or [Terms of Service \(Consumers Outside of the EU\)](#) (based on where you reside), for the general terms applicable to your personal use of the Mistral AI Products.

By (a) clicking on “I agree” (or any similar button or checkbox) at the time you sign up for a Mistral AI Product, (b) executing an Order Form referencing these Terms, or (c) otherwise accessing or using any of the Mistral AI Products on behalf of Customer, you represent that you have



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1.3. Mistral AI Infrastructure. Any use of Mistral AI Products on Mistral AI’s infrastructure (“**Mistral AI Infrastructure**”), which includes any use of the Mistral AI Products that does not occur on Customer Infrastructure or Partner Infrastructure, will be subject to these Terms and the Additional Terms for Use of Mistral AI Products on Mistral AI Infrastructure.

1.4. Customer Responsibilities. Customer is solely responsible for any activities conducted (a) through or under its Customer Account (including End User Accounts), (b) in connection with Customer Infrastructure, or (c)



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2.1. Customer Usage. Subject to Customer's compliance with these Terms, Mistral AI grants Customer a limited, non-exclusive, non-transferrable (except as provided in Section 14.2 (Assignment)), non-sublicensable (except to its End Users) license to access and use the Mistral AI Products.

2.2. Use Restrictions. Customer will not, and will not permit any other person (including any End User) to:

(a) use the Mistral AI Products or Outputs in a manner that violates any applicable laws (including sanctions and export control laws), these



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(g) use any method to extract any content from the Mistral AI Products other than as permitted through the Mistral AI Products in accordance with these Terms; or

(h) buy, sell, or transfer API keys or any type of Mistral AI account from, to, or with a third party; or

(i) integrate or combine Vibe with your own products you offer to third-parties including any other software, hardware, or other technology, nor



grant any third party access to the Mistral AI Products without our prior written authorization or except as provided under these Terms.

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Customer, and nothing in these Terms will limit Mistral AI's right to independently use, develop, evaluate, or market products, services, or technology, whether incorporating Feedback or otherwise.

3. Customer Data and Outputs

3.1. Generally. Customer may provide data to the Mistral AI Products, such as prompts (including in the form of text, audio, video, or other media), fine-tuning data, or agent instructions ("**Customer Data**"), and



receive content generated from the Mistral AI Products in response to Customer Data (“**Output**”). For clarity, the following do not constitute Output: (a) any component of the Mistral AI Products (including Model

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Customer may not use image Outputs to develop or train any image generation product that competes with a Mistral AI Product.

3.4. Similarity of Output. Due to the nature of the Mistral AI Products, Customer’s Output may be similar or identical to the response generated for another user of the Mistral AI Products. Mistral AI provides no guarantees that Customer’s Output will be unique. Any responses generated for other users by the Mistral AI Product are not considered Customer’s Output even if similar or identical to Customer’s Output.



3.5. Output Accuracy. Mistral AI Products are based on large language models (LLMs), a probabilistic technology that is continually evolving. For this reason, Outputs may occasionally be inaccurate. Mistral AI Products

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free subscription, Vibe Pro or Vibe Teams, where Customer has not opted-out of training, (b) when Customer or an End User provides Feedback to Mistral AI, (c) when Customer Data our Outputs are flagged as part of Mistral AI's automated moderation or reported by a user under the Additional Terms, (d) as otherwise may be provided in an Order Form or (e) when Customer uses Labs Models. Customer grants Mistral AI a perpetual, irrevocable, worldwide, non-exclusive, non-transferable (except as permitted in Section 14.2 (Assignment)), royalty-free, fully-paid license (with the right to sublicense to our service providers) to use Customer Data and Outputs solely as provided in the preceding sentence



to train Mistral AI's artificial intelligence models. Notwithstanding anything to the contrary, the foregoing Customer Data and Outputs will not be considered Customer Confidential Information.

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6. Confidentiality

6.1. Definition of Confidential Information. “**Confidential Information**” means any non-public data, information, or material disclosed by either party (the “**Disclosing Party**”) to the other (the “**Receiving Party**”), whether in written, oral, electronic, or other form, that is marked as confidential or, given the nature or circumstances of disclosure, should reasonably be understood as confidential. The Confidential Information of Mistral AI includes (a) Mistral AI's trade



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7. Warranties; Disclaimer

7.1. Mutual Warranties. Each Party represents and warrants that: (a) it has the power and authority to enter into these Terms; and (b) it will perform its obligations under these Terms with reasonable care and skill.

7.2. By Mistral AI. In addition to Section 7.1 (Mutual Warranties), Mistral represents and warrants that the Mistral AI Products will



substantially perform in accordance with the documentation available at <https://docs.mistral.ai> (as may be updated from time to time) or otherwise provided by Mistral AI to Customer ("Documentation")

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8.1. By Mistral AI. Subject to Section 8.2 (Exclusions), Mistral AI will indemnify, defend, and hold Customer harmless against any liabilities, damages, and costs (including reasonable attorneys' fees) in a third-party claim to the extent that the Mistral AI Products provided by Mistral AI to Customer under this Agreement infringe such third party's intellectual property rights.

8.2. Exclusions. Mistral AI will have no obligations under Section 8.1 (By Mistral AI) to the extent the third-party claim arises from: (a) the combination of the Mistral AI Products with Customer or third-party software, hardware, or any other equipment not provided by Mistral AI,



including in connection with any Customer Offering or Customer Infrastructure, (b) modification of the Mistral AI Products or Output by any party other than Mistral AI, including but not limited to any

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Party's prior written consent.

8.5. Sole and Exclusive Remedies. The remedies in this Section 8 (Indemnification) are the sole and exclusive remedies for any third-party claim that the Mistral AI Products or Customer Data infringe third-party intellectual property rights.

9. Exclusion of Damages; Limitation of Liability



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be found on the Mistral AI [pricing_page](#) unless otherwise agreed upon by the Parties, including in a written ordering document executed by Customer and Mistral AI (each, an “**Order Form**”).

10.2. Payments. Except as otherwise set forth in the applicable Order Form (if any), Customer will pay all fees due hereunder for its use of the Mistral AI Products (“**Fees**”) within thirty (30) days from the date of the invoice. Where Customer has a Customer Account, Fees will be automatically charged to Customer’s payment method on a monthly basis as provided in the Order Form (or other order confirmation). All



amounts paid by Customer are non-refundable, non-cancellable, and non-creditable.

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Customer first uses the Mistral AI Products or (b) the date Customer accepts these Terms (including by executing an Order Form). These Terms will continue for the term specified in the applicable Order Form (if any) or until terminated as provided in this Section 11 (Term, Suspension, and Termination).

11.2. Termination by Customer. If there are no Order Forms then in effect between Customer and Mistral AI, Customer may cease its use of the Mistral AI Products at any time and terminate these Terms, subject to fulfilling any outstanding payment obligations (and without any right of a refund of any prepaid fees).



11.3. Suspension or Termination by Mistral AI. Mistral AI reserves

the right to immediately suspend or terminate Customer's Mistral AI account or Customer's access to all or part of the Mistral AI Products

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Section 1.3 (Mistral AI Infrastructure), Section 2.2 (Use Restrictions), Section 2.4 (Feedback), Section 3.3 (Similarity of Outputs), Section 3.4 (Output accuracy), Section 3.5 (Outputs), Section 4 (Mistral AI Use of Customer Data and Outputs), Section 5 (Mistral AI Materials), Section 6 (Confidentiality), Section 7.4 (Disclaimer), Section 8 (Indemnification), Section 9 (Exclusion of Damages; Limitation of Liability), Section 10 (Fees and Payment), Section 11.4 (Effects of Termination), Section 11.5 (Survival), Section 14 (General Terms), and Section 16 (Mobile Applications).

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13. Updates to Terms; Additional Terms

13.1. Updates to Terms. Mistral AI may update these Terms (including all applicable Additional Terms, our [Usage Policy](#), and other terms posted at <https://legal.mistral.ai/terms>) at any time in accordance with the following procedures.

13.2. Customer Notification. Mistral AI will notify Customer of any material updates to the Terms either via email or a Customer Account notification.



13.3. Update Effective Date. Material updates to the Terms become effective thirty (30) days after notice is provided to Customer. Any updates that are not material become effective immediately upon being

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AI at the physical address above or as otherwise specified in an Order Form (and labeled “Attention: Legal”).

14.2 Assignment. Customer may not assign or transfer its rights under these Terms or subcontract its obligations herein to a third party without Mistral AI’s prior written consent. Mistral AI reserves the right to assign, transfer, or subcontract these Terms or its obligations herein to an affiliate without Customer’s prior written consent. Where Mistral AI subcontracts any of its obligations hereunder to a third party, Mistral AI will remain responsible for all acts and omissions of such third party.



14.3. Force Majeure. Neither Party will be liable for failure or delay in performing its obligations hereunder to the extent caused by circumstances beyond its reasonable control, including acts of God

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Customer and Mistral AI, these Terms, including any separate agreements, and any applicable Additional Terms, and any Order Forms constitute the entire agreement between Customer and Mistral AI concerning Customer's use of the Mistral AI Products. Any statements or comments made between Customer and any Mistral AI employees or representatives are expressly excluded from these Terms and will not apply to Customer or Mistral AI, or to Customer's access to or use of the Mistral AI Products absent a separate written agreement.

14.9. Severability. If any provision of these Terms is deemed invalid by a court of competent jurisdiction, the invalidity of such provision will not



affect the validity of the remaining provisions of these Terms, which will remain in full force and effect.

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Terms and any dispute or claim (including non-contractual disputes or claims) arising out of or in connection with it or its subject matter or formation will be governed by and construed in accordance with the laws of France. The Parties agree that the courts of Paris, France will have exclusive jurisdiction over any disputes arising out of or in connection with these Terms or its subject matter or formation.

14.11. Conflicts. If there is a conflict between these Terms and any other agreement between us, the agreements will control in the following order: (1) Order Form (if any); (2) Additional Terms; (3) these Terms; and (4) our policies/other Documentation.



14.12. Support. Mistral AI is solely responsible to provide the support described in our Documentation or any Order Form.

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information governed by any of the foregoing as inputs without first obtaining all necessary government authorizations, licenses, or approvals required for such use.

15. Contacting Mistral AI

15.1. Should you have any questions, comments, or feedback regarding these Terms or the Mistral AI Products, you may reach us at:

Address: Mistral AI, 15 rue des Halles, 75001 Paris, France.



Legal Center

Email: support@mistral.ai Help Center: <https://help.mistral.ai>

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16.2. iOS App. The terms of this subsection apply solely to Customer's and its End Users' use of any iOS App. Customer and Mistral AI understand and agree that these Terms are solely between Customer and Mistral AI, and that Apple, Inc. ("Apple") is not a party to these Terms and bears no responsibility for the iOS App or content thereof. Customer and End User access to and use of the iOS App must comply with the usage rules set forth in Apple's latest version of the [Apple Media Services Terms and Conditions](#) and the applicable [Volume Content Terms](#). Customer agrees that Apple has no obligation whatsoever to provide any



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these Terms as related to Customer's and each End User's license of the iOS App against Customer or such End User as a third-party beneficiary thereof. Customer represents and warrants that: (i) Customer and its End Users are not located in a country that is subject to a United States government embargo, or that has been designated by the United States government as a "terrorist supporting" country; and (ii) Customer and its End Users are not listed on any United States government list of prohibited or restricted parties.

16.3. Android App. The terms of this subsection apply solely to Customer's and its End Users' use of any Android App. Customer agrees



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